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February 27, 2025

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 93

By: Prieto of the Senate

and

Boles of the House

An Act relating to distributed energy resources; defining terms; providing exemptions for certain owners and operators of distributed energy resources; establishing provisions for construction and maintenance of certain electric distribution lines; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 158.71 of Title 17, unless there is created a duplication in numbering, reads as follows:

A. For the purposes of this section:

1. “Distributed energy resource” means a small-scale electrical power source that is installed near where the electricity is used including, but not limited to, dispatchable or non-dispatchable power generation, energy storage resources, energy efficiency resources, or demand response resources;

1 2. "Owner" or "operator" means a corporation, association,
2 company, or individual that owns or operates a distributed energy
3 resource to provide electrical service to a load which is under the
4 same ownership as the generation source. Provided, any owner or
5 operator which serves a load outside of its ownership shall be
6 considered a retail electric supplier;

7 3. "Public utility" means a public utility as defined pursuant
8 to Section 151 of Title 17 of the Oklahoma Statutes; and

9 4. "Retail electric supplier" means a retail electric supplier
10 as defined pursuant to Section 158.22 of Title 17 of the Oklahoma
11 Statutes.

12 B. Any owner or operator that does not serve a load outside of
13 its ownership and is not otherwise connected to a public utility
14 grid shall be exempt from complying with any state or federal
15 regulations, registration requirements, and fee payments, including
16 those mandated by the Southwest Power Pool, if applicable.

17 C. An owner or operator shall not construct or maintain
18 electric distribution lines, including poles or other related
19 structures in, around, or along any road, street, or other public
20 way, unless:

21 1. The owner or operator, or a contractor hired by the owner or
22 operator to construct the electric line, provides to the Corporation
23 Commission a performance bond in the amount of the value of the
24 line, including poles or other related structures to be located in

1 the public right-of-way. The performance bond shall be enforceable
2 up to the date that the line is energized; and

3 2. The transmission and distribution public utility providers
4 that operate the service territory where the line is proposed to be
5 built are notified in writing not less than thirty (30) days prior
6 to the commencement of line construction.

7 D. If an objection to construction of a distribution line built
8 under subsection C of this section is filed by a public utility with
9 the Corporation Commission, the Commission shall furnish adequate
10 notice to the Office of the Attorney General and complete a full
11 evidentiary hearing and procedural schedule. If the Commission
12 finds that the distribution line does not interfere with the
13 delivery of electricity to any of the public utility's existing
14 consumers, the owner or operator may proceed with the construction
15 or maintenance of electric lines after compliance with paragraphs 1
16 and 2 of subsection C of this section.

17 SECTION 2. This act shall become effective November 1, 2025.

18 COMMITTEE REPORT BY: COMMITTEE ON ENERGY
19 February 27, 2025 - DO PASS AS AMENDED BY CS
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